

		reply, based on the allegations of Plaintiffs' FAC, it is unclear whether Safari is bring these two claims. Because Plaintiffs concede Safari is not bringing the first two causes of action against Defendants, the motion for summary adjudication of these two issues is granted. Issue 3: There are not triable issues of material fact that defendants are liable to plaintiff Simply Crystal Clean, LLC or Bita Safari under the third cause of action for extortion Defendants met their burden to show Plaintiffs were not damaged by the alleged threats. (<i>Fuhrman v. California Satellite Systems</i> (1986) 179 Cal.App.3d 408, 426 and 428; <i>Tran v. Nguyen</i> (2023) 97 Cal.App.5th 523, 529 and 535; Defendants' Material Fact Numbers 5-15.) Plaintiffs did not raise a triable issue of material fact as to whether Plaintiffs sustained any damages. Although Plaintiffs contend <i>Mendoza vs. Hamzeh</i> (2013) 15 Cal.App.4th 799 held payment is not required if Plaintiffs suffered emotional distress, Plaintiffs submitted no evidence of emotional distress. (See, <i>Tran v. Nguyen</i>, 97 Cal.App.5th at 535; Opposition, 2:26-27; Plaintiffs' Separate Statement, 7:6-10.) The Court notes <i>Mendoza</i> did not discuss whether payment was required to state a cause of action for civil extortion. Rather, the <i>Mendoza</i> Court denied an anti-SLAPP motion on the ground that the defendant's conduct was criminal extortion as a matter of law and, as such, not protected conduct. (<i>Mendoza v. Hamzeh</i> (2013) 215 Cal.App.4th 799, 807.) The Court also notes Defendants quote <i>Fuhrman v. California Satellite Systems</i> (1986) 179 Cal.App.3d 408, 426-427 for the elements of civil extortion. (Motion, 11:1-6.) However, nowhere does the language Defendants cite appear in <i>Fuhrman</i>. Accordingly, the motion for summary adjudication is granted.
11	2021-01214279 Sun v. Pei	Motion to be Relieved as Counsel of Record The motion of Wesierski & Zurek, LLP, to be relieved as counsel of record for defendant Kang Pei, is granted. Upon the signing of the order, defendant's counsel shall serve the signed order on the client and all parties that have appeared. Wesierski & Zurek, LLP will be relieved as counsel of record for Kang Pei, effective upon the filing of the proof of service of the signed order upon the client and all parties. Wesierski & Zurek, LLP is ordered to give notice of the ruling.